

26PR00336 Matter of the Edward - Booth Trust

County: santa-barbara

Division: Trust

Department: 3 SM-Cook

Hearing date: 2026-09-30

Motion: Petition to Determine Claim to Property

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Tentative Ruling: Matter of the Edward - Booth Trust

Case Number

26PR00336

Case Type

Trust

Hearing Date / Time

Wed, 09/30/2026 - 09:30

Nature of Proceedings

Petition to Determine Claim to Property

Tentative Ruling

Probate Notes:

Appearances required. The following must be submitted:

Recorded Title. Petitioner alleges title is held by the trust, because the settlor of the subject trust transferred title to themselves as trustee, but never recorded title in the name of the trust. There is no allegation in the petition that settlor held title to the subject property, nor is there a deed on file showing how title to the subject property is currently held. Since "a person may not transfer an estate or interest in property unless that person is the owner of the estate or interest in question or has the legal authority to act on that owner's behalf" (Restatement (Fourth) of Property § 1.1 (2024)), the Court must have evidence of how title is held:

The nemo dat principle is typically expressed in the full Latin phrase “nemo dat quod non habet,” which roughly translates to “one can only transfer what one owns” or, in the negative, “one cannot transfer property that one does not own.” It is sometimes called the “derivation principle” because the transferee’s interest derives from the transferor’s.

(Id., at cmnt. a. See also (Miller & Starr (2024) 3 Cal. Real Est. § 8:58 (4th ed.) § 8:58 [“It is axiomatic that a deed cannot convey more than is owned by the grantor. If a deed purports to convey property that is not owned by the grantor, it is ineffective to convey the property, and it is a “wild deed” that can have no effect on title of the person who holds real title to the property.”]; and Romero v. Shih (2024) 15 Cal.5th 680, 689 [citing same in Miller & Starr].)

Defective Service. The Proof of Service of Notice of Hearing shows service was given on September 16, 2026, which is far short of the 30-day requirement.

Service of Petitions pursuant to section 850 of the Probate Code is governed by section 851, which references CCP section 413.10:

At least 30 days prior to the day of the hearing, the petitioner shall cause notice of the hearing and a copy of the petition to be served in the manner provided in Chapter 4 (commencing with Section 413.10) of Title 5 of Part 2 of the Code of Civil Procedure on all of the following persons where applicable:

(1) The personal representative, conservator, guardian, or trustee as appropriate.

(2) Each person claiming an interest in, or having title to or possession of, the property.

(Prob. Code, § 851(a).) According to that chapter of the CCP, service of the petition must be on the person (CCP, §§413.10; 415.10) the same as a civil summons, with exceptions for mailing and publication as that law provides when the serving party proves the petition “cannot with reasonable diligence be personally delivered to the person to be served...” (CCP, §415.20(b).)

Once proper service has been completed, any objecting respondents must file a written objection before the next hearing. The court has authority to require all objectors to file a written objection pursuant CRC, Rule 7.801, or else deem the failure to do so a waiver.

It is recommended the hearing be continued to a date set by the Court at the hearing, to allow sufficient time for re-service in conformity with the new rule.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the “Filing Description” field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Timothy Staffel

Dept. 3 SM-Cook

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